

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANTHONY GREEN

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
BURDEYNY, SHIELD 14915 TAX ID 954580 OF PSA 2,
POLICE OFFICERS JOHN AND JIM DOE (FICTITIOUS
NAMES BECAUSE THEIR IDENTITIES ARE CURRENTLY
UNKNOWN) ALL SUED IN THE CAPACITY OF POLICE
OFFICERS AND IN THEIR INDIVIDUAL CAPACITY,

Defendants,

-----X
To the above named Defendant(s):

SUMMONS

INDEX NO.

Plaintiffs designate Kings
County as the Place of trial
The basis of venue is Kings
County is the place where the
cause of action arose.

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiffs' Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service (30) days after the service is complete if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 18, 2020

Royce Russell

Royce Russell, Esq.
EMDIN & RUSSELL, LLP.
Attorneys for the Plaintiffs
C/o Law Office of Jeffrey Emdin
330 West 38th Street Suite 302
New York, New York 10018
(718) 785-8890

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Police Officer Burdeynyy
Shield 14915, Tax ID 954580
c/o PSA 2
560 Sutter Avenue
Brooklyn. NY 11207

Police Officer John and Jim Doe
c/o PSA 2
560 Sutter Avenue
Brooklyn. NY 11207

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ANTHONY GREEN

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
BURDEYNY, SHIELD 14915 TAX ID 954580 OF
PSA 2, POLICE OFFICERS JOHN AND JIM DOE
(FICTITIOUS) NAMES BECAUSE THEIR IDENTITIES
ARE CURRENTLY UNKNOWN) ALL SUED IN THE
CAPACITY OF POLICE OFFICERS AND IN THEIR
INDIVIDUAL CAPACITY,

Defendants,
-----X

Plaintiff, Anthony Green by his attorneys, EMDIN & RUSSELL, LLP, as and for a

Verified Complaint allege as follows:

PARTIES

1. Upon information and belief that at all times hereinafter mentioned, the Defendant, the City of New York, hereinafter referred to as "CITY" was, and still is a municipal corporation duly organized and existing under, and by virtue of the laws of the State of New York.
2. Upon information and belief at all times hereinafter mentioned the Defendant, the City of New York, hereinafter referred to as "CITY", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter respectively referred to as "NYPD", including all the Police Officers therein.

3. Upon information and belief Police Officer Burdeynyy, at all times hereinafter mentioned, and on the 8th day of May, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the PSA 2 and acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
4. Upon information and belief John Doe, hereinafter referred to as ‘John’ named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 8th day of May, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, was assigned to the PSA 2, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
5. Upon information and belief Jim Doe, hereinafter referred to as “Jim” named herein in a fictitious capacity as his identity is presently unknown all times hereinafter mentioned, and on the 8th day of May, 2019 was employed as a Police Officer by the “CITY” and/or “NYPD”, was assigned to the PSA 2, and at all relevant times set forth below acted in the capacity as Police Officer and employee of the City of New York, and/or New York City Police Department.
6. Upon information and belief other unknown Police Officers named herein in fictitious capacities as their names are currently unknown, all times hereinafter mentioned, and on the 8th day of May, 2019 was/were employed as a Police Officer(s) by the “CITY” and/or “NYPD”, and at all relevant times set forth below was assigned to the PSA 2 and acted in the capacity as Police Officers and employee of the City of New York, and/or New York City Police Department.

7. Hereinafter the police officers present at the location set forth below are collectively referred to as “the Officers and/or Defendants”.
8. The incident set forth below occurred in the vicinity of 453 Mother Gaston Boulevard, in the County of Kings, State of New York, hereinafter referred to as “the location”, on May 8, 2019 at approximately 9:35 p.m.
9. At all relevant times hereinafter mentioned, Plaintiff Anthony Green, hereinafter referred to as “Green and/or Plaintiff” was a resident of Kings County, residing at 412 Amboy Street, Brooklyn, New York.
10. The Plaintiff has filed a Notice of Claim advising the Defendants of the nature of the claims on or about July 15, 2019. The Plaintiff has submitted to a 50H hearing on or about November 5, 2019.
11. The Defendants have not offered to settle the Plaintiff claims.
12. This action is brought within a year and ninety days of the date when the causes of action arose.

STATEMENT OF FACTS

13. On May 8, 2019, at approximately 9:30 p.m., Plaintiff was lawfully parking his vehicle when he noticed an unmarked police vehicle, (Black Chevy Impala), pull up and park behind his car.
14. The Defendants through their agents, servants and/or employees, approached the Plaintiff’s vehicle and ordered the Plaintiff to produce identification.
15. The Plaintiff complied with the Defendants/Officers’ request.

16. Defendant Burdeynny then asked Plaintiff whether he had a driver's license and registration for which the Plaintiff responded "Yes I do" and provided such to Defendant Burdeynny.
17. Defendant Burdeynny reviewed Plaintiff's documents and thereafter asked the Plaintiff did he possess insurance. Plaintiff replied "Yes" open his Insurance application on his cell phone and handed to Burdeynny.
18. After reviewing Plaintiff's driver's license, registration and Insurance application, Burdeynny gave said documents back to the Plaintiff. Burdeynny then ordered Plaintiff out of his vehicle.
19. Plaintiff asked why he was being ordered out of his vehicle for which he was told his car smelled like "Weed". Plaintiff responded that was impossible because he does not smoke marijuana or cigarettes and he just had his car detailed. Plaintiff also mentioned he does not allow smoking in his vehicle because he has a small child.
20. Burdeynny insisted that Plaintiff exit his vehicle and stated the detention was being recorded as he continued to claim he smelled weed. Plaintiff complied with all orders.
21. Plaintiff was then illegally pat down/searched and ordered to stand at the rear of his vehicle.
22. Plaintiff informed the Defendants that he did not consent to the search of his person or the search of his vehicle.
23. Defendants illegally searched the Plaintiff's car that being the interior, trunk and glove compartment which was locked. The Defendants ordered the Plaintiff to give them the keys to the glove compartment so they could conduct the illegal search of said compartment.

24. The Defendants claimed the search of the car and glove compartment was procedure.
25. No contraband was found on the Plaintiff or in his vehicle.
26. Defendants questioned Plaintiff about his possession of a PBA card that was given to him by his uncle, who is an active member of the service.
27. After the illegal seizure and search, Plaintiff was allowed back inside his vehicle, Burdeynyy provided the Plaintiff his name, precinct and a NYPD business card as all Defendants left the location.
28. The police searched his vehicle absent a lawful warrant, exigent circumstances, without permission or authority to do a search or just or probable cause.
29. No charges were filed against the Plaintiff.
30. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL DEFENDANTS FOR FALSE IMPRISONMENT/DETENTION, THE
PLAINTIFF ALLEGES:**

31. The Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "30" with the same force and effect as if more fully and at length set forth herein.
32. That on the 8th day of May, 2019, at the approximate time of 9:30 p.m., the defendants, and their agents, servants and/or employees intentionally held, detained and/or imprisoned the Plaintiff without any just cause or grounds therefore.
33. That the Plaintiff was held against his will under full force of arms.

34. That the Plaintiff named herein was wholly innocent of any crime and did not contribute in any way or manner to his imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to having his freedom restricted and said imprisonment/detention was entirely against his will.
35. That the defendants, their agents, servants and/or employees, as set forth above, intended to seize, and confine the Plaintiff's movement and freedom; and the Plaintiff was conscious of his confinement; and did not consent to said confinement/imprisonment; and the confinement was not otherwise privileged.
36. That by reason of the aforesaid false imprisonment the Plaintiff was subjected to great indignity, humiliation, pain and great distress of mind and body, and the said Plaintiff has been otherwise damaged.
37. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR ASSAULT AND BATTERY, THE
PLAINTIFF ALLEGES:**

38. The Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "37" with the same force and effect as if more fully and at length set forth herein.
39. That commencing on the 8TH day of May, 2019, at the time of 9:35 p.m. at "the location", the Defendant officers Burdeynyy, John and Jim, while acting in the scope of their employment as police officers and as agents for the Defendant the "CITY" and "NYPD", without just cause or provocation illegally pat-down/searched the Plaintiff.

40. Upon information and belief the officers had absolutely no reason or just cause to batter and assault the Plaintiff.
41. The battery, assault and physical contact was not privileged
42. The battery and assault took place while the plaintiff had committed no crime.
43. That the defendants, their agents, servants and/or employees, including unknown police officers, were acting as agents on behalf of the Defendant "CITY" and/or "NYPD", within the scope of their employment, intentionally, willfully, and maliciously assaulted and battered each of the named plaintiffs, in that they had the real or apparent ability to cause imminent harmful or offensive bodily contact and intentionally did an act which threatened to and did cause such contact to the Plaintiff.
44. That said acts caused apprehension of such offensive contact to the Plaintiff and the Defendants caused such battery/assault in and about his body and limbs.
45. That by reason of the aforesaid intentional battery and assault, the Plaintiff suffered offensive contact and/or psychological injuries to his body mind, and that each was otherwise damaged.
46. That by reason of the aforesaid, the Plaintiff, has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AS FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANT OFFICERS FOR 42 U.S.C. 1983
VIOLATIONS, THE PLAINTIFF ALLEGES:**

47. The Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "46" with the same force and effect as if more fully and at length set forth herein.

48. By the aforesaid acts, the Defendants “officers” individually and collectively have violated each Plaintiff’s right: to privacy under the First and Fourteenth Amendments, to have his persons and property be free of illegal searches and seizures under the 4th and 14th Amendments to the United States Constitution; to be free from discrimination based upon race, thereby giving rise to a cause of action pursuant to 42 USC 1983.
49. The conduct and actions of the named Defendants police officers, acting under color of law, in seizing each Plaintiff, and upon information and belief in searching the Plaintiff; in battering/ assaulting the Plaintiff, in intimidating the Plaintiff, in searching the vehicle of the Plaintiff, absent warrant, and in falsely imprisoning/detaining the Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff’s Constitutional rights as guaranteed under 42 U.S.C. 1983, et seq.,
50. Each of the Defendants police officers’ actions, individually and collectively deprived the Plaintiff of his rights including, but not limited to the right to privacy in his person and/or property; under the First and Fourth Amendments guaranteeing protection against unlawful seizure of their persons under the Fourth and Fourteenth Amendments, and Title 42 U.S.C. 1983 et seq.
51. That by reason of the aforesaid, Green has been damaged in a sum exceeding the jurisdictional limits of the lower court and seeks compensatory and punitive damages, costs, attorneys fees, and expert fees as provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
FOR NEGLIGENCE AGAINST THE "CITY" THE PLAINTIFF ALLEGES:**

52. The Plaintiff repeat, reiterate and reallege each and every allegation contained in paragraphs marked "1" through "51" with the same force and effect as if more fully and at length set forth herein.
53. That the CITY and/or NYPD were at all relevant times hereunder, negligent in the testing, analyzing, screening, hiring, investigating, training, retaining, promotion, supervision, monitoring, disciplining and/or assigning of its officers, including the defendants named herein.
54. That as a result of their negligence, the above named Plaintiff was falsely imprisoned, detained, illegally seized, illegally searched, and had his constitutional and civil rights violated.
55. That by reason of the aforesaid, the Plaintiff, Green has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

WHEREFORE, the Plaintiff demand judgment against the Defendants in a sum to be determined by the trial of fact, plus costs, attorney's fees, disbursements, legal and statutory interest and such other relief as to the court seems just and proper on the first through the fourth causes of action, plus attorneys fees, costs, disbursements and punitive damages, and such further relief as to the court seems just and proper.

DATED: New York, New York
March 18, 2020

Royce Russell

Royce Russell, Esq.
Emdin & Russell, LLP.
Attorneys for plaintiffs
C/o Law Office of Jeffrey L. Emdin
330 West 38th Street Suite 302
New York, New York 10018
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am an attorney associated with the law firm of Emdin, & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff do not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 18, 2020



By: Royce Russell, Esq.